ASSIGNMENT

TOPIC: RIGHT TO INFIORMATION ACT, 2005

SUBMITTED TO:

Annanya Khanikor

SUBMITTED BY:

NAME: RIYA BORA

CLASS: Master of Arts, 2nd sem

DEPT: Political Science

Roll no: 2025MPS44

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Right to Information Act,2005

1. **Introduction:**

The Right to Information Act, 2005, is a landmark legislation in India that aims to promote transparency and accountability in governance. It provides citizens with the legal right to access information held by public authorities, thereby strengthening democratic values. In a democratic system, informed citizens play a vital role in ensuring responsible governance, and this Act empowers individuals by making the functioning of the government more open and accessible. It marks a significant transition from a culture of secrecy to one of transparency.

2.Background and Need:

Before the enactment of the Right to Information Act, access to government information was highly restricted under laws such as the Official Secrets Act, 1923. This lack of transparency often resulted in corruption, inefficiency, and misuse of authority. The demand for the right to information emerged from grassroots movements and civil society organisations that emphasised the importance of transparency in governance. These movements argued that access to information is closely linked to the fundamental right to freedom of speech and expression. As awareness increased, the need for a comprehensive law became evident, leading to the introduction of the Right to Information Act, 2005.

3.Main Body:

3.1 Key Provisions of the Act:

The Right to Information Act, 2005 establishes a clear mechanism for citizens to obtain information from public authorities. It mandates the appointment of Public Information Officers in all government departments to handle requests. According to the Act, information must generally be provided within 30 days, and within 48 hours in cases involving life and liberty. The Act also includes provisions for penalties against officials who fail to provide information without valid reasons, ensuring accountability and efficiency in administration.

3.2. Scope and Coverage:

The scope of the Act is wide and inclusive. It applies to all levels of government, including central, state, and local bodies, as well as institutions that are substantially funded by the government. This ensures that a large number of public authorities are accountable to citizens. However, certain intelligence and security organisations are exempted from its purview, except in cases involving corruption or human rights violations. This helps maintain a balance between transparency and national security.

4. Judgement (Critical Analysis):

The Right to Information Act, 2005, has played a crucial role in promoting transparency and accountability in governance. It has empowered citizens to question the government and has contributed to reducing corruption in various sectors. By enabling access to information, it has strengthened democratic participation and improved administrative efficiency. However, the Act also faces challenges such as delays in providing information, backlog of cases in Information Commissions, and misuse of provisions by some individuals. Additionally, concerns have been raised regarding the independence and effectiveness of Information Commissions, which may impact the proper implementation of the Act.

5. Current Relevance:

In the present era, the importance of the Right to Information Act has increased due to the expansion of government activities and the growing demand for transparency. It continues to serve as a vital tool for citizens to monitor public expenditure, evaluate government schemes, and ensure accountability in administration. With the rise of digital governance, access to information has become even more significant. At the same time, emerging issues such as data privacy and confidentiality require a careful balance between openness and protection of sensitive information

6. Conclusion:

The Right to Information Act, 2005, represents a significant milestone in strengthening democracy and promoting good governance in India. It has transformed the relationship between citizens and the state by ensuring transparency and accountability. While the Act has achieved considerable success, its effectiveness depends on proper implementation, institutional support, and public awareness.

Addressing existing challenges and safeguarding the independence of oversight bodies will help maintain the relevance and impact of the Act. Ultimately, the RTI Act will continue to play a vital role in upholding democratic principles and ensuring responsible governance in India.